



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 8386 (EXTENSION)
FIRST REVISION January 17, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8386 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

OCT 24 1994

Alan W. Roberts
Alan W. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: PHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

J. J. Mauget Company
Los Angeles, CA

September 12, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8386
(FIRST REVISION)

1. J. J. Mauget Company, Burbank, California, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of an insecticide for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a Class B poison in special packaging without the POISON label, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on J. J. Mauget Company's application dated September 30, 1983 and November 9, 1984, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquid organic phosphate mixture, classed as Poison B.

4. PROPER SHIPPING (NAME) 49 CFR 172.101. Organic phosphate compound, mixture, liquid.

5. REGULATION AFFECTED. 49 CFR 172.101, 172.400.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is pressure sealed polyethylene capsules containing not to exceed 3 ml of liquid. Not more than 100 capsules must be skin packed on absorbent pasteboard pads. Not more than three of these pasteboard pads must be stacked together and the sides of the stack wrapped with enough absorbent padding to completely absorb the total volume of insecticide in the package. The wrapped stack must be placed in a 5 mil, one piece, polyethylene bag, form-fitted to the inner wall of the outside packaging and securely closed with a tie wire.

The outside packaging must be a DOT Specification 12B30 fiberboard box constructed of double wall corrugated fiberboard having a burst strength of not less than 275 pounds.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reshipe them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Packages shipped under the terms of this exemption are not required to bear the POISON label.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. November 30, 1985.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions
Branch.

Dist: FHWA